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LODGED in the registry aton theday
of....., 2025.

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Drawn and filed by;

M/S FIRM K & Co. Advocates,
P.O Box 7117,
Kampala, Uganda.

**THE REPUBLIC OF UGANDA
IN THE HIGH COURT OF UGANDA HOLDEN AT KAMPALA
(COMMERCIAL DIVISION)
MISCELLANEOUS APPLICATION NO. OF 2025
(ARISING FROM HIGH COURT CIVIL SUIT NO. 0640 OF 2023)**

CHEAP HARDWARE LTD :::::::::::::::::::::::::::::::::::::: APPLICANT

VERSUS

KAMPALA METAL INDUSTRIES LTD RESPONDENT

AFFIDAVIT IN SUPPORT OF THE NOTICE OF MOTION

I, **MOSES KASIM**, of c/o M/s Firm B1 and Associated Advocates, P.O Box 7117 Kagugube Road, Kampala, make oath and state as follows:

1. That I am a male adult Ugandan of sound mind and the Managing Director of the Cheap Hardware Limited, the Applicant in this matter and I am duly authorised to swear this affidavit.
2. That in 2023 the Respondent filed a suit against the Applicant at the High Court (Commercial Division) vide civil suit No. 0640 of 2023 for recovery of an outstanding balance of UGX. 453,710,200 Shillings.
3. That the Applicant filed a counter claim that the Respondent officials directed it to deposit the monies for the supplies to some transactions to which the Applicant was not part to in any transactions.
4. That the Applicant paid in excess of a total of UGX 109,025,000 shillings to the Respondent over and above the cost of supplies which formed the basis of the suit and sought to recover the excess amounts.
5. That judgment in the said suit was delivered by Hon. Justice Job Okello on the 7th day of July 2025 to which among other orders, the counterclaim was dismissed and ordered to pay excessive damages, costs, interest, and recovery claims. (Copy of the judgement is hereto attached and marked **"A"**)
6. That the applicant has at all material times since the judgement been desirous of appealing against the order of the High Court (Commercial Division).
7. That however, by reason of circumstances beyond the Applicant's control, including the delay in obtaining a certified copy of the judgment as required under the rules, the statutory period for lodging a Notice and Memorandum of Appeal has since lapsed.
8. That being dissatisfied with the said judgment, the Applicant instructed its advocates to appeal to the Honourable Court of Appeal. (Copy of the notice of instructions is hereto attached and marked **"B"**)
9. That the Applicant's advocate has taken a diligent step to bring the application within reasonable time, immediately after instruction.
 - a. That the intended appeal is to raise serious questions of law and fact, inter alia; That the learned trial judge erred in law and fact in

finding that the Defendant failed to prove that payments made to Pizza Enterprises Ltd, Streetwise Traders Ltd and Biden Davis on instructions from the Plaintiff were not payments made to the Plaintiff, thereby occasioning a miscarriage of Justice.

- b. That the learned Trial Judge erred in law when he wrongly applied the principle on burden of proof, failing to properly consider that the Defendant had sufficiently discharged its evidential burden to prove payments and instructions by the Plaintiff's representatives thus arriving at a flawed finding of non-payment.
 - c. That the learned Trial Judge erred in law and fact when he wrongly dismissed the Defendant's counterclaim for overpayment without adequately considering the documentary and oral evidence presented thereby unjustly denying the Defendant relief to which it was entitled.
 - d. That the learned Trial Judge erred in law and fact when he failed to resolve the contradictions in the Plaintiff's evidence thereby occasioning a miscarriage of justice.
 - e. That the learned Trial Judge erred in law when he admitted and relied upon inadmissible documents referencing unrelated third-party accounts thereby occasioning a miscarriage of justice.
 - f. That the learned Trial Judge erred in law and fact when he failed to properly evaluate the evidence on record which led to a miscarriage of Justice.
10. That it is in the interest of substantive justice that this Honourable Court grants the Applicant leave to appeal out of time so that the intended appeal may be heard and determined on its merit.
11. That the applicant has a high chance of winning the appeal if given an opportunity.
12. That this application is brought in good faith and the Respondent will not be prejudiced by the orders sought.

13. That what I have stated hereinabove is true and correct to the best of my knowledge, belief and understanding

Dated at Kampala thisday of, 2025

Affirmed by the said;

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MOSES KASIM

Drawn and filed by;

M/S FIRM K & Co. Advocates,

P.O Box 1234,

Kampala, Uganda.